

Bachchan Babu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 March 2021 · Writ-C No. 6539 of 2021 · **Writ dismissed; bill-liability dispute relegated to Clause 6.5.**

HEADNOTE

A writ challenging recovery of an electricity bill for a commercial connection is not maintainable. For any dispute as to the consumer's liability to pay the bill, the appropriate remedy is to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition was dismissed.

FACTUAL SUMMARY

Bachchan Babu petitioned the High Court of Judicature at Allahabad in Writ-C No. 6539 of 2021 against the State of Uttar Pradesh and two others. He held a commercial electricity connection in his own name and disputed the assessment of the electricity bill for that connection. By the writ he sought to challenge recovery of the billed amount. The Division Bench of Sunita Agarwal and Deepak Verma JJ. heard the matter on 15 March 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — writ not maintainable; Clause 6.5 is the appropriate remedy

HOLDING

Where the consumer disputes liability to pay an electricity bill, the appropriate remedy is to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ petition seeking to challenge recovery cannot be entertained and is dismissed. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court refused to entertain a writ challenging bill recovery and directed the consumer to the Clause 6.5 forum. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A dispute as to liability to pay the electricity bill is to be taken to the competent authority under Clause 6.5, not by writ. ¶ 1

6.5-representation-as-appropriate-remedy The Court identified Clause 6.5 as the appropriate remedy for the commercial-connection bill assessment dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE COMMERCIAL-CONNECTION BILL ASSESSMENT AND THE RECOVERY DEMAND

The Court did not examine the bill or recovery on merits, holding only that Clause 6.5 is the appropriate forum. ¶ 1